

improper vehicle to challenge admissibility of Eisenhower's expert evidence. Eisenhower asserts that courts routinely supplement the administrative record with expert evidence and doing so is appropriate here. Eisenhower asserts that courts routinely supplement the administrative record with expert evidence, and expert evidence is standard in validation actions. Further, Dr. Wong's opinions are relevant and probative evidence that the LPA is unlawful. Lastly, Eisenhower asserts that whether expert testimony is admissible at trial is premature and should be addressed in accordance with trial procedures.

In reply, Plaintiffs assert that Eisenhower does not have a right to supplement the administrative record and no rule compelled it to do so. Further, Plaintiffs assert that Eisenhower violated the court's August 3, order denying his request to supplement the administrative record and a motion to strike is the proper vehicle to challenge the improper lodging. Lastly, Plaintiffs assert that Eisenhower's arguments about the admissibility of expert testimony are meritless. Eisenhower failed to follow the appropriate procedures to introduce extra-record evidence and cannot supplement the administrative record in this fashion. Further, Plaintiffs assert that Eisenhower failed to establish the expert materials should be admitted in this validation action and Dr. Wong's opinions are irrelevant.

Augmenting of Administrative Record

CCP section 1094.6(c) assigns the duty to create the administrative record.

On August 3, 2026, this court ordered District to file an augmented record and identified what must be contained in the administrative record. Eisenhower does not have the right to file supplements to the administrative record, and this court pursuant to CCP section 436 has the right to strike the filing as not being filed in conformity with law.

Granting this motion does not in any fashion indicate the court's ruling on the admissibility of the evidence Eisenhower seeks to introduce. However, they cannot augment the administrative record.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2501784	KG MULLEN INC., A CALIFORNIA CORPORATION VS FAWAZ, AN INDIVIDUAL	MOTION TO VACATE DEFAULT BY ISABELLA FAWAZ, AN INDIVIDUAL

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a matter involving the sale of real property that was encumbered with a mechanic's lien case. It is alleged that on February 22, 2022, Plaintiff KG Mullen, Inc. ("Plaintiff") entered into a written contract with Defendant Isabella and Moet Fawaz ("Fawaz") whereby Plaintiff agreed to provide specified construction-related services including labor and materials necessary for the substantial improvements to a residential property in Palm Desert, California ("Subject Property"). Over the course of the construction project, the scope of the work was modified through written and verbal change orders that

increased the cost of the project. Plaintiff alleges that Fawaz failed to make all payments. As a result, Plaintiff was unable to complete all work on the project. On December 17, 2024, Plaintiff recorded a mechanic's lien against the Subject Property. On December 23, 2024, Fawaz transferred titled to the Subject Property to Defendants Rebecca and Jonathan Polaks ("Defendants" or "Polaks").

Plaintiff filed their Complaint on March 14, 2025, and the operative Second Amended Complaint ("SAC") on August 1, 2026. The SAC includes six causes of action for: (1) Breach of Contract; (2) Foreclosure of Mechanic' Lien; (3) Quantum Meruit and Quantum Valebant; (4) Account Stated; (5) Open Book Account; and (6) Unjust Enrichment. On September 29, 2025, the Polaks filed a Cross-Complaint against the Fawaz for: (1) Equitable Indemnification; (2) Contribution; and (3) Fraud.

Moving Defendant, Isabella Fawaz, seeks to set aside default previously entered on April 16, 2026 after she was served by substitute service at her father's home, co-defendant Moet Fawaz (who also has his own separate motion to set aside default). Specifically, Defendant Isabella Fawaz argues that she was not residing at her father's home.

Here, the court finds that proper service was effectuated by substitute service on March 4, 2026 pursuant to CCP 415.20(b). The court notes that her purported actual address at the time was in Los Angeles County while she attended Pepperdine University. However, service was effectuated at her usual place of abode in Agoura Hills, CA, which is a short 10-15 minute drive to Pepperdine University. The address is the same listed in a contract in the underlying matter (Exhibit 5 Contract Proposal to Cross Complaint's Opp.) Moreover, and of greater weight, her father a co-defendant in the instant matter was served at the same location. There is not anything in the moving Defendant's declaration that she does not reside at that location other times of the year or that she does not communicate with her father. The court also notes, her legal address, which would appear on a government issued identification card, is also missing from her declaration. While certainly not required, it would strengthen her argument that service was improper at her father's home. The court finds the evidence does not support this service was not valid and that she was not aware of it.

Finally, moving Defendant has precluded this court from ruling on discretionary ground pursuant to CCP 473.5 by failing to comply with procedural requirements. The notice of motion on discretionary grounds must be accompanied by a declaration showing defendant's lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (C.C.P. §473.5(b).) Counsel for Defendant specifically recognized that by stating that they were not including any proposed responsive pleading on their notice of motion.